

and ceased to have any effect, and the trustee had done his duty when he refused to lend the money" (e).

25. **Tenant for life not to be favoured.**—No applications from *cestuis que trust* to their trustees are so frequent as for a more productive investment for the benefit of the tenant for life. In these cases the trustees must remember that any special power which the settlement may give them was \*not created for the purpose of favouring one [\*318] party more than another, but for the benefit of *all*, and if they lend themselves improperly to the views of the tenant for life, at the expense of the remaindermen, they will be held personally responsible (a).

**Trustees bound to protect the remaindermen.**—And where trustees have the ordinary power of varying securities *with the consent of the tenant for life*, the trustees must consider the intention to be that as the control is given to the tenant for life for *his* protection, so the trustees have a particular discretion reposed in them for the protection of the *remaindermen* (b). And on the other hand where every change of investment is to be with the *consent* of the tenant for life, and he withholds his consent though the fund is in danger, the trustee can proceed in equity and compel a change of investment, against the wishes of the tenant for life (c).

26. **Consent.**—All the conditions annexed to the power must be strictly observed, as if the authority be to lend to the husband *with the consent of the wife*, the trustees cannot make the advance on their own discretion, and take the consent of the wife at a subsequent period (d). And if the consent of two trustees be required, the consent of one of them does not operate as the consent of both (e). And where the consent of a married woman was necessary to authorise an investment with the sanction of the Court, a *petition* by the

(e) *Boss v. Godsall*, 1 Y. & C. C. 617; and see *Luther v. Bianconi*, 6 Ir. Ch. Rep. 145; *Vickery v. Evans*, 3 N. R. 286.

10 Ir. Ch. Rep. 194; *Costello v. O'Rorke*, 3 I. R. Eq. 172. Compare (b) See *Harrison v. Thexton*, 4 Jur. N. S. 550.

cases at p. 328, note (c), *infra*. (c) *Costello v. O'Rorke*, 3 I. R. Eq. 172.

(a) *Raby v. Ridehalgh*, 7 De G. M. & G. 104; and see *Stuart v. Stuart*, (d) *Bateman v. Davis*, 3 Mad. 98.

3 Beav. 430; *Fitzgerald v. Fitzgerald*, (e) *Greenham v. Gibbeson*, 10 Bing. 363.